

Devendra Kumar Bansal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 July 2013 · Writ-C No. 38177 of 2013 · **Writ dismissed; petitioner relegated to objections on provisional assessment and Code remedies.**

HEADNOTE

Allahabad High Court declined to entertain a writ seeking constitution of a committee under Clause 8.0(5) of the U.P. Electricity Supply Code, 2005 to inquire into inspection procedure, after a provisional assessment notice had been served. The consumer was left to raise all objections, including as to the checking procedure, in reply to that notice or under the Code.

FACTUAL SUMMARY

Devendra Kumar Bansal sought a writ directing the respondents to constitute a committee under Clause 8.0(5) of the U.P. Electricity Supply Code, 2005 to inquire into the procedure allegedly adopted by respondent no. 4 during an inspection. Counsel stated on oral instructions that a provisional assessment notice had already been served. The petitioner had also made a representation against the inspection procedure (Annexure-6).

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.0(5)

committee to inquire into inspection procedure

HOLDING

A writ seeking constitution of a committee under Clause 8.0(5) of the U.P. Electricity Supply Code, 2005 to inquire into inspection procedure will not be entertained once a provisional assessment notice has been served; the consumer may raise all objections, including as to the checking procedure, in reply to that notice or pursue the remedies under the Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE INSPECTION PROCEDURE ADOPTED BY RESPONDENT NO. 4 WAS IRREGULAR OR WARRANTED A CLAUSE 8.0(5) INQUIRY COMMITTEE

Left to objections against the provisional assessment notice or other Code remedies. ¶ 1